

JUSTIFICATION FOR OTHER THAN FULL & OPEN COMPETITION

AUTHORITY: FAR 6.302, 41 U.S.C. 253(c)

Requirement Title / Name: Ft Hall Indian Irrigation Project (FHIP) 100 HP Motor Repair for Pump 111**Purchase Request Number:** 44015627**Originating Office (Customer):** Tim Gardner, FHIP**Division / Unit / Branch:** Ft Hall Indian Irrigation Project (FHIP)**1. This is a justification for other than full and open competition.**

Agency: Indian Affairs
IA Acquisition Office: A12 Northwest Region

2. Nature and/or description of the action being approved:

Requirement: Modification to existing order
Pricing: Firm-Fixed Price
Proposed Contractor/Vendor:
Name: Well Equipped LLC dba American Pump and Drilling
Street Address: 10758 N Yellowstone Hwy
City, State, Zip: Idaho Falls, ID 83401
Phone: (208) 557-8677

3. A description of the supplies or services required to meet the agency's needs (including the estimated value):

The Fort Hall Indian Irrigation Project (FHIP) has an Urgent and Compelling requirement for the repair of a 100HP motor for pump 111.

IGE: \$ XXXXXXXXXX

4. An Identification of the statutory authority permitting other than full and open competition:

- ☐ FAR 6.302-1 -- Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements. 41 U.S.C. 3304(a)(1)
- ☒ FAR 6.302-2 -- Unusual and Compelling Urgency. 41 U.S.C. 3304(a)(2)
- ☐ FAR 6.302-3 -- Industrial Mobilization; Engineering, Developmental, or Research Capability; or Expert Services. 41 U.S.C. 3304(a)(3)
- ☐ FAR 6.302-4 -- International Agreement. 41 U.S.C. 3304(a)(4)
- ☐ FAR 6.302-5 -- Authorized or Required by Statute. 41 U.S.C. 3304(a)(5)

☐ FAR 6.302-6 -- National Security. 41 U.S.C. 3304(a)(6)

☐ FAR 6.302-7 -- Public Interest. 41 U.S.C. 3304(a)(7)

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

The nature of the requirement has been deemed urgent and following competitive procedures would result in unacceptable delays. The urgency in this situation is due to the fact that the water season has arrived (April 15 to October 15) for the irrigation of crops. The failure of this motor was discovered during startup operations. Failure to provide the required irrigation could cause crop failure and cause the government to be open to tort claims for the value of the lost crops.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies.

Due to the urgent nature of this action, limited market research was conducted. Additionally, there are no further barriers to competition for water pump repair requirements other than the urgency in this circumstance and the remote location. Future requirements of this nature will continue to be publicized and competed. The exception at FAR 5.202(a)(2) applies.

7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. This determination is based on the following:

IAW FAR 13.106-3(a)(1):

- Whenever possible, base price reasonableness on competitive quotations or offers. FHIP received three quotes from vendors in the local area and American Pump is the lowest of the three.

8. A description of the market research conducted (see Part 10) and the results or a statement of the reason market research was not conducted.

Due to the urgent nature of this action, limited market research was conducted American Pump and Drilling is one of the few companies that provides pump repair in the Fort Hall, Idaho Region and is registered in SAM.gov. There are few companies in the general area that provide the service of pulling and rehabbing a motor and then setting it again. American Pump and Drilling is both in the area capable of pulling and setting the motor and is registered in SAM.gov.

Additionally, there are no further barriers to competition for pump repair requirements other than the urgency in this circumstance. Future requirements of this nature will continue to be publicized and competed. The exception at FAR

5.202 (a)(2) applies.

9. Any other facts supporting the use of justification of other than full and open competition, such as:

American Pump and Drilling is one of the few companies that provides these types of services in the Ft. Hall, Idaho Region and is registered in SAM.gov. Due to the nature of the irrigation season (15 April to 15 October) and the need for irrigators to be able to water their crops, time is of the essence.

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

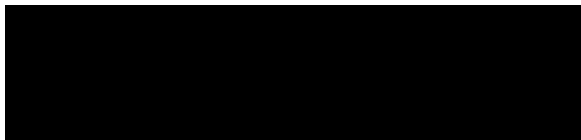
None.

11. A statement of any actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

There are no further barriers to competition for pump repair other than the urgency in this circumstance. Future requirements of this nature will continue to be publicized and competed.

Originating Office Attestation:

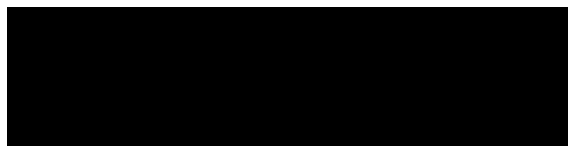
I certify that the technical data which forms a basis for this justification is complete and accurate and meets the Government's minimum needs.



Timothy Gardner
Supervisory Maintenance Operations Specialist
Fort Hall Indian Irrigation Project

12. Contracting Officer certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief:

I hereby certify that this justification is accurate and complete to the best of my knowledge and belief.



Brian Roberts
Contracting Officer
Bureau of Indian Affairs